

HOUSE BILL NO. 759

INTRODUCED BY R. GREGG, S. FITZPATRICK

A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING CAMPAIGN FINANCE LAWS;
PROVIDING LIMITATIONS THAT ONLY A LIMITED LIABILITY COMPANY AND PARTNERSHIP THAT IS
TAXED AS A SOLE PROPRIETORSHIP OR A PARTNERSHIP, OR A PARTNERSHIP TAXED AS A
PARTNERSHIP, MAY MAKE CONTRIBUTIONS TO A CANDIDATE AND THAT THE CONTRIBUTIONS
MUST BE REPORTED UNDER THE NAME OF THE MEMBER OR PARTNER MAKING THE
CONTRIBUTION; AND PROHIBITING AN INDIVIDUAL CONTRIBUTION SEPARATE FROM THE
CONTRIBUTION MADE BY THE MEMBER OR PARTNER OF THE LIMITED LIABILITY COMPANY OR
PARTNERSHIP CLARIFYING CONTRIBUTION LIMITS."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Limitations on limited liability company and partnership
contributions to candidates -- reporting requirements. (1) A candidate may only accept a contribution from
a limited liability company or partnership if the limited liability company ~~or partnership~~ is classified and taxed as
a SOLE PROPRIETORSHIP OR A partnership, OR THE PARTNERSHIP IS TAXED AS A PARTNERSHIP, for federal tax
purposes. A candidate may not accept a contribution from a limited liability company or partnership that is taxed
as a C. corporation or an S. corporation for federal tax purposes.

(2) A contribution from a limited liability company ~~or partnership~~ taxed as a SOLE PROPRIETORSHIP
OR partnership, OR A PARTNERSHIP TAXED AS A PARTNERSHIP, for federal tax purposes must be reported under the
name of the member or partner making the contribution subject to the disclosure requirements under 13-37-
229.

(3) The member or partner reported as making a contribution to a candidate ~~as a limited liability~~
~~company or partnership may not make a separate contribution as an individual and is subject to the~~ INDIVIDUAL
contribution limitations under ~~13-37-219~~ 13-37-216.

1 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as a new
2 part of Title 13, chapter 37, and the provisions of Title 13, chapter 37, apply to [section 1].

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